

SPECIAL PROVISIONS

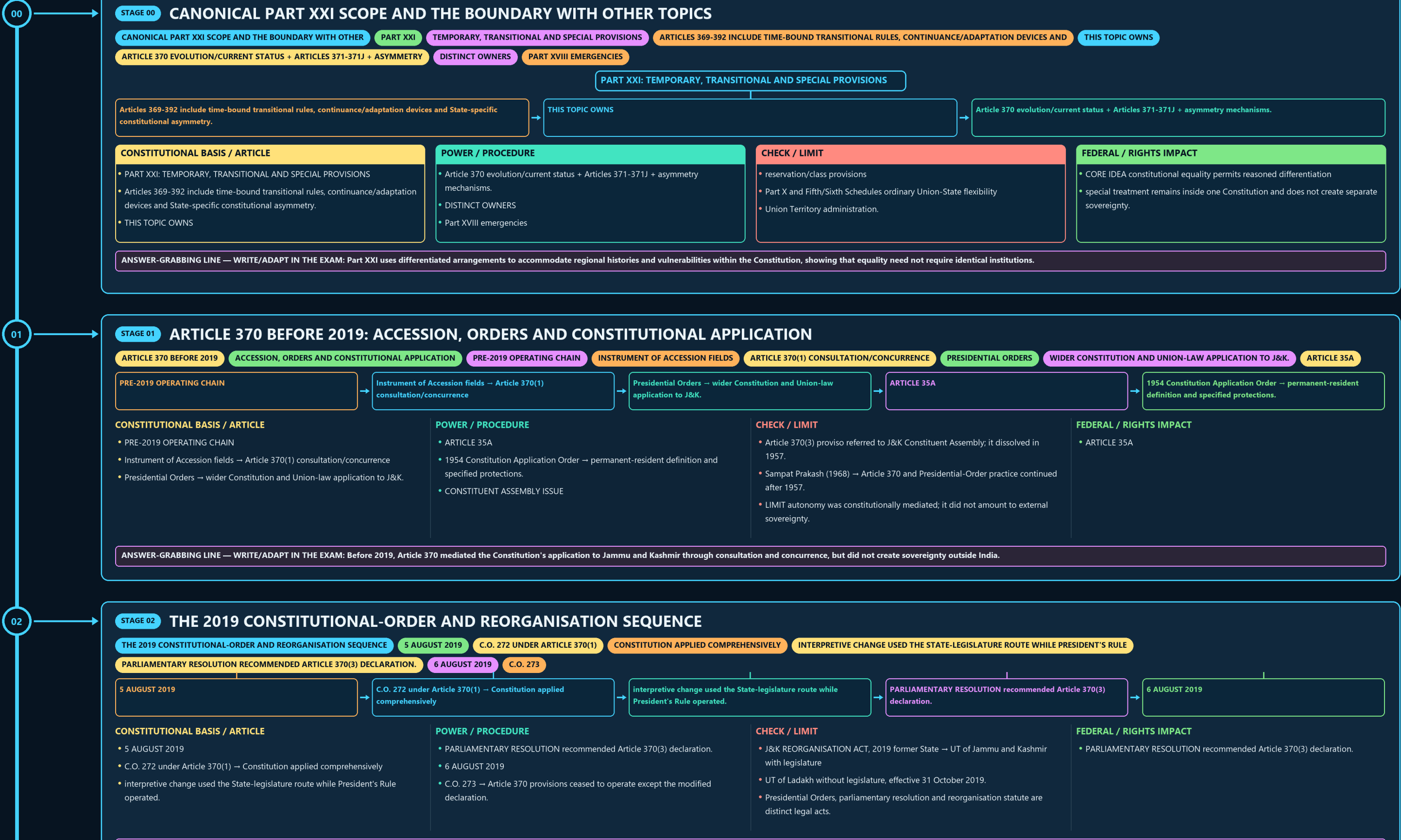
CANONICAL PART XXI SCOPE → ARTICLE 370 BEFORE 2019 → THE 2019 CONSTITUTIONAL-ORDER AND → IN RE ARTICLE 370 → CURRENT JAMMU AND KASHMIR → ARTICLES 371 TO 371D

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g2 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles



02

STAGE 02

THE 2019 CONSTITUTIONAL-ORDER AND REORGANISATION SEQUENCE

THE 2019 CONSTITUTIONAL-ORDER AND REORGANISATION SEQUENCE

5 AUGUST 2019

C.O. 272 UNDER ARTICLE 370(1)

CONSTITUTION APPLIED COMPREHENSIVELY

INTERPRETIVE CHANGE USED THE STATE-LEGISLATURE ROUTE WHILE PRESIDENT'S RULE

PARLIAMENTARY RESOLUTION RECOMMENDED ARTICLE 370(3) DECLARATION.

6 AUGUST 2019

C.O. 273

5 AUGUST 2019

C.O. 272 under Article 370(1) → Constitution applied comprehensively

interpretive change used the State-legislature route while President's Rule operated.

PARLIAMENTARY RESOLUTION recommended Article 370(3) declaration.

6 AUGUST 2019

CONSTITUTIONAL BASIS / ARTICLE

5 AUGUST 2019

C.O. 272 under Article 370(1) → Constitution applied comprehensively

interpretive change used the State-legislature route while President's Rule operated.

POWER / PROCEDURE

PARLIAMENTARY RESOLUTION recommended Article 370(3) declaration.

6 AUGUST 2019

C.O. 273 → Article 370 provisions ceased to operate except the modified declaration.

CHECK / LIMIT

J&K REORGANISATION ACT, 2019 former State → UT of Jammu and Kashmir with legislature

UT of Ladakh without legislature, effective 31 October 2019.

Presidential Orders, parliamentary resolution and reorganisation statute are distinct legal acts.

FEDERAL / RIGHTS IMPACT

PARLIAMENTARY RESOLUTION recommended Article 370(3) declaration.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Asymmetric federalism is legitimate only when differentiated treatment serves a constitutional purpose and remains proportionate and accountable.

03

STAGE 03

IN RE ARTICLE 370 (2023): HOLDINGS AND ISSUES LEFT OPEN

IN RE ARTICLE 370 (2023)

HOLDINGS AND ISSUES LEFT OPEN

IN RE

ARTICLE 370 OF THE CONSTITUTION (2023)

ARTICLE 370 WAS TEMPORARY; J&K HAD NO INTERNAL SOVEREIGNTY

ARTICLE 370(3) POWER SURVIVED DISSOLUTION OF THE J&K CONSTITUENT

C.O. 273 DECLARATION WAS UPHELD

C.O. 272'S ARTICLE 367 ROUTE WAS INVALID, BUT THE

CONSTITUTIONAL BASIS / ARTICLE

In Re: Article 370 of the Constitution (2023)

Article 370 was temporary; J&K had no internal sovereignty after accession

Article 370(3) power survived dissolution of the J&K Constituent Assembly

POWER / PROCEDURE

C.O. 273 declaration was upheld

C.O. 272's Article 367 route was invalid, but the final outcome survived independently

J&K Constitution became inoperative after full application of India's Constitution.

CHECK / LIMIT

OPEN / QUALIFIED

Court recorded restoration-of-Statehood assurance and set no judicial deadline.

It did not finally decide the State-to-UT conversion issue after the Union concession.

FEDERAL / RIGHTS IMPACT

VERDICT the Article 370 abrogation question is judicially settled; Statehood timing remains political/legal.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: In re Article 370 upheld the 2019 constitutional result and rejected continuing internal sovereignty, but did not finally validate every conceivable conversion of a State into Union Territories.

04

STAGE 04

CURRENT JAMMU AND KASHMIR AND LADAKH POSITION

CURRENT JAMMU AND KASHMIR AND LADAKH POSITION

JAMMU AND KASHMIR

UNION TERRITORY WITH LEGISLATURE

ASSEMBLY ELECTIONS HELD SEP-OCT 2024

STATEHOOD NOT RESTORED AS OF 24 AUGUST 2026.

UNION TERRITORY WITHOUT LEGISLATURE.

DEMANDS INCLUDE STATEHOOD, SIXTH SCHEDULE PROTECTION AND ARTICLE 371-TYPE

LEGAL STATUS CONTROL DEMANDS, COMMITTEE TALKS AND POLITICAL ASSURANCES

JAMMU AND KASHMIR

Union Territory with legislature

Assembly elections held Sep-Oct 2024

Statehood not restored as of 24 August 2026.

CONSTITUTIONAL BASIS / ARTICLE

JAMMU AND KASHMIR

Union Territory with legislature

Assembly elections held Sep-Oct 2024

POWER / PROCEDURE

Statehood not restored as of 24 August 2026.

Union Territory without legislature.

Demands include Statehood, Sixth Schedule protection and Article 371-type safeguards.

CHECK / LIMIT

LEGAL STATUS CONTROL demands, committee talks and political assurances are not enacted constitutional change.

J&K Statehood restoration → reorganisation/federal-status question

Ladakh Sixth Schedule → Article 244 + Sixth Schedule autonomy question

FEDERAL / RIGHTS IMPACT

Article 371-type protection → Part XXI amendment question.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Ladakh remains a Union Territory without a legislature, while Statehood and Sixth Schedule demands remain political proposals rather than enacted constitutional status.

05

STAGE 05

ARTICLES 371 TO 371D: DEVELOPMENT AND REGIONAL-EQUITY MECHANISMS

ARTICLES 371 TO 371D

DEVELOPMENT AND REGIONAL-EQUITY MECHANISMS

ARTICLE 371

GOVERNOR'S SPECIAL RESPONSIBILITY FOR REGIONAL DEVELOPMENT BOARDS, EQUITABLE FUNDS

ARTICLE 371A

NAGALAND SPECIFIED RELIGIOUS/SOCIAL PRACTICES, CUSTOMARY LAW, CUSTOMARY JUSTICE AND

ARTICLE 371B

ASSEMBLY COMMITTEE FOR TRIBAL AREAS.

ARTICLE 371

Maharashtra/Gujarat → Governor's special responsibility for regional development boards, equitable funds and opportunities.

ARTICLE 371A: NAGALAND specified religious/social practices, customary law, customary justice and land/resources shielded from parliamentary

Assembly resolves otherwise.

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CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

MECHANISM / VERDICT — ARTICLE 371D: ANDHRA PRADESH/TELANGANA equitable local opportunities in public employment/education; presidential-order mechanism.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 371D authorises regional arrangements for equitable public employment and education, using constitutional asymmetry to address intra-State imbalance.

06

STAGE 06ARTICLES 371F TO 371J: IDENTITY, LAW-AND-ORDER AND LOCAL OPPORTUNITY

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ARTICLE 371F: SIKKIM integration-specific Assembly, representation and continuity protections.

ARTICLE 371G: MIZORAM specified religious/social practices, customary law/justice and land protection unless State Assembly resolves

distinct from Nagaland's resource wording.

ARTICLE 371H: ARUNACHAL PRADESH

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 371H gives Arunachal Pradesh's Governor limited individual judgment over law and order, but not personal control over the State's entire policy domain.

07

STAGE 07MECHANISM COMPARISON: ORDERS, AMENDMENTS AND TRIBAL SCHEDULES

MECHANISM COMPARISONORDERS, AMENDMENTS AND TRIBAL SCHEDULESARTICLE 370 HISTORIC ROUTEPRESIDENTIAL ORDERS UNDER ITS OWN TEXTNOW INOPERATIVE AFTER 2019/2023 CONTROL.ARTICLES 371-371J CONSTITUTIONAL TEXT CREATED OR CHANGED THROUGH CONSTITUTIONAL-AMENDMENT

SOME CLAUSES AUTHORISE PRESIDENTIAL ORDERS OR GOVERNOR RESPONSIBILITIES FORFIFTH SCHEDULE

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ARTICLE 370 HISTORIC ROUTE	some clauses authorise Presidential Orders or Governor responsibilities for implementation.	SIXTH SCHEDULE autonomous district/regional councils in Assam, Meghalaya, Tripura and Mizoram.	!= Fifth Schedule administration != Article 370's former application mechanism.
Presidential Orders under its own text → now inoperative after 2019/2023 control.	FIFTH SCHEDULE	DO NOT MERGE	
ARTICLES 371-371J constitutional text created or changed through constitutional-amendment history	Scheduled Areas + Governor/Tribes Advisory Council + presidential declaration architecture.	Article 371A/371G consent shields != Sixth Schedule councils	

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Assembly elections held Sep-Oct 2024

Demands include Statelood, Sixtn Scedule protection and Article 371-type safeguards.

Ladakh Sixth Schedule → Article 244 + Sixth Schedule autonomy question

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Ladakh remains a Union Territory without a legislature, while Statehood and Sixth Schedule demands remain political proposals rather than enacted constitutional status.

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SPECIAL PROVISIONS • TILE 3/4 • same master rows 4863-8097 of 10529 • continues below

07

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CONSTITUTIONAL BASIS / ARTICLE - ARTICLE 370 HISTORIC ROUTE - Presidential Orders under its own text → now inoperative after 2019/2023 control. - ARTICLES 371-371J constitutional text created or changed through constitutional-amendment history	POWER / PROCEDURE - some clauses authorise Presidential Orders or Governor responsibilities for implementation. - FIFTH SCHEDULE - Scheduled Areas + Governor/Tribes Advisory Council + presidential declaration architecture.	CHECK / LIMIT - SIXTH SCHEDULE autonomous district/regional councils in Assam, Meghalaya, Tripura and Mizoram. - DO NOT MERGE - Article 371A/371G consent shields != Sixth Schedule councils	FEDERAL / RIGHTS IMPACT != Fifth Schedule administration != Article 370's former application mechanism.

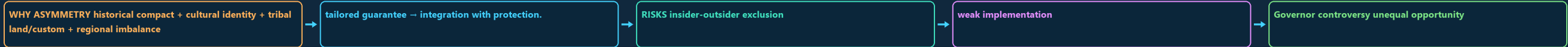
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Fifth Schedule emphasises protected administration and advisory mechanisms, while the Sixth Schedule gives specified north-eastern tribal areas a stronger self-government framework.

08

STAGE 08 FEDERALISM, EQUALITY, CURRENT TRAPS AND QUALIFIED SYNTHESIS

FEDERALISM, EQUALITY, CURRENT TRAPS AND QUALIFIED SYNTHESIS WHY ASYMMETRY HISTORICAL COMPACT + CULTURAL IDENTITY + TRIBAL TAILORED GUARANTEE INTEGRATION WITH PROTECTION. RISKS INSIDER-OUTSIDER EXCLUSION WEAK IMPLEMENTATION

GOVERNOR CONTROVERSY UNEQUAL OPPORTUNITY PERMANENT GRIEVANCE POLITICS.



CONSTITUTIONAL BASIS / ARTICLE - WHY ASYMMETRY historical compact + cultural identity + tribal land/custom + regional imbalance - tailored guarantee → integration with protection. - RISKS insider-outsider exclusion - weak implementation - Governor controversy unequal opportunity	POWER / PROCEDURE - permanent grievance politics. - PRELIMS FIREWALL - Article 370 printed but inoperative - Articles 371-371J still operative 371E enables a university	CHECK / LIMIT 371I concerns Goa 371H law and order - Fifth/Sixth Schedules are not Part XXI - Ladakh demands are not law. - MAINS SPINE define asymmetric federalism → classify mechanism → exact Article/State	FEDERAL / RIGHTS IMPACT - benefit → equality/federal counterpoint → implementation reform - unity through constitutionally bounded and reviewable difference.
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ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Special provisions can be defended as substantive equality: unequal conditions may need differentiated treatment.

E

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT 36. THE ARTICLE 370 JUDGMENT AND CONSTITUTIONAL METHOD 37. PRESIDENT'S RULE AND FEDERAL CONSENT 38. DIFFERENTIATED CITIZENSHIP 39. ANSWER-WRITING EVIDENCE DISCIPLINE

[ANALYSIS] THE JUDGMENT DISTINGUISHED THE POLITICAL WISDOM OF ABROGATION [ANALYSIS] BY USING ARTICLE 370'S TEMPORARY CHARACTER AND CONTINUING 367 MODIFICATION INDISPENSABLE.

OPTIONAL DOCTRINE / CASE 36. The Article 370 judgment and constitutional method 37. President's Rule and federal consent 38. Differentiated citizenship 39. Answer-writing evidence discipline	ADVANCED LIMIT [ANALYSIS] The judgment distinguished the political wisdom of abrogation from constitutional authority. [ANALYSIS] By using Article 370's temporary character and continuing presidential power, the Court avoided making the disputed Article 367 modification indispensable. [LIMIT] An answer should not compress multiple opinions into a slogan; use only common controlling propositions unless a separate opinion is relevant.	COMPARATIVE NUANCE [ANALYSIS] Critics argue that using President's Rule for permanent constitutional restructuring weakens federal consent. [ANALYSIS] The integration response relies on constitutional text, temporary Article 370 and Parliament's substitute authority during President's Rule. [LIMIT] Statehood conversion remains the strongest unresolved dimension; do not pretend the 2023 judgment supplied a universal rule. [ANALYSIS] Special land, employment and representation rules differentiate entitlements by residence, community or region.
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OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.